IN THE NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI, COURT NO. IV,

(CAA) NO.-103/ND/2021)

CONNECTED WITH

CA (CAA)- 64/ND/2021

(In the matter of Sections 230-232 of the Companies Act, 2013 and other applicable provisions of the Companies Act, 2013 r/w Companies (Compromises, Arrangements, and Arrangements) Rules, 2016.)

IN THE MATTER OF SCHEME OF AMALGAMATION

OF
ELGIN ROAD SERVICES PRIVATE LIMITED

(Transferor Company No. 1/ Petitioner Company -1)

AND
W.H. TARGETT INDIA LIMITED

(Transferee Company No.2/ Petitioner Company -2)

AND

THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS

CORAM:
DR. DEEPTI MUKESH,
HON'BLE MEMBER (J)

MS. SUMITA PURKAYASTHA,
HON'BLE MEMBER (T)

PRESENTS:

For the Applicant : Ms. Sanchita Bhardwaj, Adv.
For the OL : Ms. Hemlata Rawat, Mr. AayushmaanVatsyayana, Advs.
For the ITD : Mr. Sunil Aggarwal, Sr. St. Counsel,
Mr. Tushar Gupta, Jr. St. Counsel,
Mr. Parinay Gupta, Adv.

Order pronounced on: 29.09.2021

MEMO OF PARTIES

ELGIN ROAD SERVICES PRIVATE LIMITED
Having its registered office at:
145, Sunder Nagar, Lodhi Road
New Delhi- 110003.

... (Transferor CompanyNo.1/Petitioner Company-1)

AND

W.H. TARGETT INDIA LIMITED
Having its registered office at:
145, Sunder Nagar, Lodhi Road,
New Delhi- 110003.

... (Transferee CompanyNo.2/ Petitioner Company-2)

ORDER

DR. DEEPTI MUKESH, HON'BLE MEMBER (JUDICIAL)

1. This petition for Second Motion has been filed under the provisions of Sections 230-232 of the Companies Act, 2013 read with Rule 15(1) of the Companies (Compromise, Arrangements, Amalgamation) Rules, 2016 for the Scheme of Arrangement (for brevity SCHEME) praying for fixing a date of hearing of the main Company Petition for approving the scheme of arrangement by way of amalgamation as well as for issuance of direction concerning publication of notices in press to be carried and notices to be issued to the authorities concerned including regulators, if any.

2. From the records, it is seen that the First Motion application was filed before this Tribunal vide CA(CAA)- 64/ND/2021 moved under Section 230-232 of the Companies Act, 2013 and vide order dated 03.09.2021 directions were issued by this Tribunal, wherein the meetings of the Equity Shareholders, secured and unsecured creditors of the transferor company and meetings of Equity & Preference shareholders, secured and unsecured creditors of Transferee company were dispensed with.
3. The certified copy order of the First Motion application was received on 03.09.2021 and the Second Motion petition was filed on 08.09.2021, which is well within limitation period.
4. Taking into consideration the above facts and record, it is hereby ordered as follows:
   i. The date of hearing of the Petition filed by the petitioners for the approval of the Scheme is fixed on **30th November, 2021.**
   ii. Notice of the hearing shall be advertised in the newspapers namely, the "Business Standard" (English, Delhi edition) and "Jansatta" (Hindi, Delhi edition) not less than 10 days before the aforesaid date fixed for hearing.
   iii. In addition to the public notice, each of the Applicant(s) shall serve the notice of the Petition on the following Authorities namely, (a) Central Government through Regional Director (Northern Region), Ministry of Corporate Affairs; (b) Registrar of Companies, NCT of

Delhi & Haryana, Ministry of Corporate Affairs; (c) the Income Tax Department through the Income Tax Cell at DCIT (High Court Cell), Lawyer's Chamber, Block No. 1, Room No. 428 & 429, Delhi High Court, New Delhi, along with full details of assessing officer and PAN numbers of all the applicant companies; (d) Official Liquidator; and to such other Sectoral Regulatory Authorities who may govern the working of the respective companies involved in the Scheme at least 30 days before the date fixed for hearing of the above Petition.

iv. Further, notices shall also be served to Objector(s) or to their representative, if any, as contemplated under Sub-Section (4) of Section 230 of the Act who may have made representation and who have desired to be heard in their representation along with a copy of the Petition and the Annexure filed therewith at least 15 days before the date fixed for hearing.

v. All the Applicants shall at least 7 days before the date of hearing of the Petition shall file an affidavit of service in relation to publication effected in the newspapers as well as service of notices on the Authorities specified above including the Sectoral regulator as well as to Objectors, if any.

vi. Objections to the Scheme, if any, contemplated by the authorities, to whom notices have been given on or before the date fixed for hearing, may be filed, failing which it will be considered that there is no objection to the approval of the Scheme on the part of the authorities

and subject to other conditions being satisfied as may be applicable under the Companies Act, 2013 and relevant rules framed there under.

vii. Each Applicant Company shall individually comply with proviso to sub section (3) of Section 232 or proviso to sub section (7) of Section 230, of the Act, 2013, as may be applicable under the circumstances on or before the date fixed for hearing by filing the certificate of statutory auditors of the Applicant companies.

viii. The next date of hearing of the Petition shall be on **30.11.2021** for the consideration of the approval of the Scheme of Arrangement as contemplated between the Applicant Companies.

The Petition is allowed and disposed off in terms of above order.

Sd/-

SUMITA PURKAYASTHA
MEMBER (T)

Sd/-

DR. DEEPTI MUKESH
MEMBER (J)